

SENATE BILL NO. 1369

103RD GENERAL ASSEMBLY

INTRODUCED BY SENATOR NICOLA.

3840S.011

KRISTINA MARTIN, Secretary

AN ACT

To amend chapter 304, RSMo, by adding thereto one new section relating to motorcycle operation, with penalty provisions.

Be it enacted by the General Assembly of the State of Missouri, as follows:

Section A. Chapter 304, RSMo, is amended by adding thereto
2 one new section, to be known as section 304.039, to read as
3 follows:

304.039. 1. As used in this section, the following
2 terms mean:

3 (1) "Lane filtering", driving a motorcycle, as defined
4 in section 301.010, between rows of stopped or slow-moving
5 vehicles that are traveling in the same direction as the
6 motorcycle on divided or undivided streets, roads, or
7 highways;

8 (2) "Lane splitting", driving a motorcycle, as defined
9 in section 301.010, between rows of fast-moving vehicles
10 that are traveling in the same direction as the motorcycle
11 on divided or undivided streets, roads, or highways.

12 2. An operator of a motorcycle may overtake and pass
13 vehicles in the same lane occupied by a vehicle being
14 overtaken, or between the lanes of two vehicles being
15 overtaken, so long as the operator of the motorcycle is
16 traveling at a rate of speed not more than ten miles per

17 hour over the speed of traffic flow and not more than twenty-
18 five miles per hour.

19 3. Nothing in this section shall be construed as
20 authorizing lane splitting.

21 4. Any operator of a motor vehicle who intentionally
22 impedes or attempts to prevent any operator of a motorcycle
23 from operating his or her motorcycle as permitted under this
24 section shall be guilty of an infraction.

25 5. The Missouri state highway patrol may develop
26 educational guidelines relating to lane filtering in a
27 manner that would ensure the safety of the motorcycle
28 operator and the drivers and passengers of the surrounding
29 vehicles.

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